

Payment of \$9,000.00; and (g) the Administration Expenses Payment of \$15,950.00. Disbursement to Class Counsel and the Class Representative shall not precede disbursement to Class Members.

6. Attorneys' Fees and Costs: Class Counsel is awarded attorneys' fees in the amount of \$624,999.99 and litigation costs in the amount of \$35,000.00, to be paid from the Gross Settlement Amount, except that 5% of the fees shall be withheld pending the compliance hearing.
7. Service Payment: Plaintiff Yekaterina Ramirez is awarded a Class Representative Service Payment of \$9,000.00, in addition to any Individual Class Payment and Individual PAGA Payment she receives as a Participating Class Member.
8. Administration Expenses: Apex Class Action, LLC is awarded \$15,950.00 for settlement administration services.
9. PAGA Allocation: The Court approves the PAGA Penalty allocation of \$40,000.00, with \$30,000.00 (75%) to the LWDA and \$10,000.00 (25%) to Aggrieved Employees as Individual PAGA Payments.
10. Tax Treatment: Individual Class Payments shall be allocated 10% to wages (W-2) and 90% to non-wage amounts (Form 1099).
11. *Cy Pres*: Uncashed checks remaining after 180 days shall be voided and remitted to Legal Aid Foundation of Los Angeles as *Cy Pres* Recipient pursuant to Code of Civil Procedure section 384, subdivision (b).
12. Release: The releases set forth in the Settlement Agreement are approved and shall be binding upon Participating Class Members and Aggrieved Employees upon the Effective Date.
13. Escalator: The escalator clause has not been triggered. If triggered, the Gross Settlement Amount shall increase proportionally or the Class Period shall end as provided in the Settlement Agreement.
14. No Admission: The settlement and this Order constitute neither an admission by Defendant of any fault, wrongdoing, or liability, nor a finding by the Court of the validity of any allegations.
15. PAGA Submission: Class Counsel shall submit this Order to the Labor and Workforce Development Agency within the time required by Labor Code section 2699.
16. Retention of Jurisdiction: This Court retains jurisdiction over the Parties and the subject matter of this action for purposes of enforcing the settlement and resolving any disputes arising thereunder.
17. Judgment: Final Judgment is entered in favor of Defendant and against Plaintiff and the Class with respect to all claims released by the Settlement Agreement.
18. Further Handling. Class Counsel are directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order, attaching a copy of this ruling.
19. Class counsel is ordered to schedule a compliance hearing with the clerk of the court no later than one year from the date of entry of this order, and is ordered to submit a compliance statement in the form of a declaration of distributions by the Administrator at least ten (10) court days before the compliance hearing date.
20. The Administrator is ordered to withhold 5% of the attorney's fees pending satisfactory compliance as found by the Court at or before the compliance hearing.

13. 9:00 AM CASE NUMBER: C24-00142

CASE NAME: XIOMARA SANCHEZ VS. CHANCELIGHT, INC.

***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF SETTLEMENT AND PROVISIONAL CERTIFICATION OF SETTLEMENT CLASS**

FILED BY: XIOMARA SANCHEZ

TENTATIVE RULING:

Summary

Plaintiff Xiomara Sanchez ("Plaintiff"), individually, and on behalf of herself, filed this Motion for Preliminary Approval of the Class Action against Defendant Chancelight, Inc and Spectrum Center, Inc. (collectively, "Defendant"). The Motion is approved as set forth herein. No appearance is required at the hearing on September 16, 2026.

Background

This wage and hour class action is brought by Plaintiff against Defendants ChanceLight, Inc. and Spectrum Center Inc. on behalf of approximately 919 current and former non-exempt Instructional Aides who worked in California during the Class Period from April 27, 2017, through October 31, 2021. Plaintiff alleges systemic violations of California Labor Code provisions regarding meal periods, rest periods, overtime compensation, wage statements, and timely payment of wages upon separation of employment, as well as unfair business practices under Business and Professions Code section 17200.

The parties have agreed to a non-reversionary settlement totaling \$825,000 (the "Maximum Settlement Amount" or "Gross Settlement Amount"), which will be allocated as follows:

- (1) up to \$275,000 (one-third of the Gross Settlement Amount) in attorneys' fees to Class Counsel;
- (2) up to \$22,642.51 in litigation costs;
- (3) up to \$25,000 in settlement administration expenses (estimated at \$11,450 by ILYM Group, Inc., the proposed Settlement Administrator);
- (4) a Service Enhancement award of up to \$10,000 to Named Plaintiff Xiomara Sanchez; and
- (5) the remaining Net Settlement Amount (approximately \$505,907.49) to be distributed *pro rata* to Participating Class Members based on Covered Class Workweeks worked during the Class Period, with an estimated average recovery of \$560 per class member.

The settlement provides for a 50/50 tax allocation whereby fifty percent (50%) of each class member's Individual Settlement Award shall be treated as wages (reported on Form W-2 with appropriate withholdings) and fifty percent (50%) shall be treated as non-wage payments for alleged unpaid penalties and interest (reported on Form 1099). Any settlement checks that remain uncashed or are returned as undeliverable after the distribution period shall be escheated to the Controller of the State of California pursuant to the Unclaimed Property Law (Civil Code §§ 1500 et seq.) and Code of Civil Procedure section 384.

The Settlement Administrator shall mail the Class Notice to all identifiable Class Members within thirty (30) business days after Defendants provide the class data, which shall occur within thirty (30)

calendar days of preliminary approval. The Notice will explain the settlement terms, the right to opt out or object, the pro rata distribution methodology, the proposed attorneys' fees and service enhancement, and the date of the Final Approval Hearing. Class Members shall have forty-five (45) days from the mailing of the Notice to request exclusion or file objections.

Participating Class Members will release Defendants and their related entities from all claims that could have been asserted based on the facts alleged in the operative complaint, including claims for meal and rest period violations, unpaid straight-time and overtime wages, wage statement violations, waiting time penalties, and unfair business practices during the Class Period. The release does not extend to claims for vested benefits, unemployment benefits, disability benefits, social security benefits, or workers' compensation benefits.

The settlement was achieved through arm's-length negotiations following two mediation sessions with Lisa Klerman, Esq., the first on September 20, 2024, and the second on August 26, 2025, after extensive informal discovery regarding Defendants' financial condition and class damages. Defendants raised affirmative defenses and financial distress arguments, while Plaintiff faced risks regarding class certification and the substantial burdens of proving damages and Defendants' willfulness. The settlement represents a fair compromise, providing immediate monetary recovery to the class while avoiding the uncertainty, expense, and delay of continued litigation.

Analysis

The primary determination is whether the proposed settlement is "fair, reasonable, and adequate" under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801. The factors include "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement." (See also, *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521)

California law provides guidance concerning judicial approval of class action settlements. First, public policy favors settlement (*Neary v. Regents of Univ. of Cal.* (1992) 3 Cal.4th 273), but the court must not approve an agreement contrary to law or public policy (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127). Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*Cal. State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) Consequently, courts have noted that *Neary* does not apply where public rights are implicated, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorneys' Fees

The requested attorneys' fees, \$275,000, which is of one-third of the common fund are reasonable under the common fund doctrine and consistent with *Staton v. Boeing Co.* (9th Cir. 2003) 327 F.3d 938. Class Counsel has expended over 200 hours with a lodestar exceeding \$180,000, and the requested fees align with the substantial benefits obtained and the risks undertaken in this complex wage and hour litigation.

Even under the common fund theory, however, the fee award should be reviewed through a lodestar

cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the lodestar cross-check as a method to determine whether the percentage allocated is reasonable. The Court stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id.* at p. 505.) Following typical practice, however, the Court will not consider the fee award at this preliminary approval stage, but reserves review for final approval.

Similarly, litigation costs in the amount of \$22,642.51 and the requested representative payment of \$10,000 to Plaintiff is fair and reasonable given her substantial time commitment (over 100 hours) and the risks faced as the class representative

Ruling

1. The settlement is sufficiently fair, reasonable, and adequate to justify *preliminary* approval. The motion is **granted**.
2. Counsel are directed to prepare an order reflecting this ruling, the other findings in the previously submitted proposed order, attaching a copy of this ruling.
3. Counsel are ordered to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date, which shall include the matters necessary to comply with Code of Civil Procedure section 384(b).
4. Notwithstanding any contrary provision in the settlement agreement, 5% of the attorney's fees are to be withheld by the administrator until released by the Court after review of the compliance statement.
5. The Court may issue a release through an unreported minute order without a hearing on the compliance statement.
6. No appearance is required at the hearing on September 16, 2026.

14. 9:00 AM CASE NUMBER: C24-02813
CASE NAME: ANITA HERNANDEZ VS. GOLDEN GATE BELL LLC
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: GOLDEN GATE BELL LLC
TENTATIVE RULING:

The motions are **continued** to September 30, 2026 at 9:00 a.m. in Department 16.

Defendant Golden Gate Bell, LLC moves to compel arbitration in each of two related cases brought by Plaintiff Anita Hernandez. In a class action filed on October 18, 2024 (C24-02813), Defendant moves to compel arbitration of Plaintiff's individual Labor Code claims and to dismiss the class claims. In a PAGA action filed on December 20, 2024 (C24-03464), Defendant moves to compel arbitration of Plaintiff's individual claims for civil penalties under the PAGA and to stay non-individual claims pending the outcome of the arbitration.